includes the power to raid a person, the power to tap phone conversations, the power to spend money, the power to punish a person, etc. Power corrupts, and the greater the power of the personnel of an agency, the harder it will be for that agency to achieve state capacity.

Swedish or UK levels of coercive power should only be given to an agency when it has Swedish or UK levels of capability. Conversely, Swedish or UK levels of investigative powers or punishments are always inappropriate in India. The daily expansion of criminal offences increases the likelihood of state failure.

Six components of the law that creates an agency

The law that establishes an agency requires six key elements:

1. *Clarity of objective:* Accountability can only come about when there is clarity of purpose. Vague, multiple or conflicting objectives cater to corruption and incompetence.
2. *Formal processes for legislative functions:* The law must write the due process through which the agency wields the power to write law.
3. *Formal processes for executive functions:* The law must write the due process through which the agency performs executive functions like licensing and investigation. This is analogous to the role of the Criminal Procedure Code in binding the police to how they function.
4. *Formal processes for judicial functions:* The law must write the due process through which the judicial functions are performed. There must be a hearing, the person conducting the proceedings must be unconflicted, orders and penalties must be reasoned, and an efficacious appeal must be possible.
5. *Reporting and accountability:* The agency must release enough information about its own functioning so as to be held accountable